

GALLERY

Terms of Service

The Platform Built for Every Kind of Creator

Effective Date: 2026 · Version 1.0

Confidential · Not for Distribution

Gallery, operated by Shomron Industries · Atlanta, Georgia, USA

These Terms of Service govern your use of the Gallery platform. By creating an account or using Gallery, you agree to these terms. Please read them carefully.

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1. Legal Foundations

1.1 Company & Governing Law

Gallery is operated by Shomron Industries, based in Atlanta, Georgia, USA. These Terms of Service are governed by the laws of the State of Georgia, without regard to conflict of law principles.

1.2 Global Compliance

Gallery serves users worldwide and complies with the following data protection and privacy laws:

- General Data Protection Regulation (GDPR) — European Union
- California Consumer Privacy Act (CCPA) — United States
- Privacy Protection Law (PPL) — Israel
- Act on Protection of Personal Information (APPI) — Japan

Where these laws impose stricter standards than US law, Gallery applies those stricter standards to all users globally.

1.3 Age Requirements

You must be at least 13 years old to use Gallery. Users under 16 in the European Union require verifiable parental consent. By creating an account, you confirm you meet the applicable age requirement. Providing false age information is a violation of these Terms.

1.4 Acceptance of Terms

By creating a Gallery account or using the platform in any way, you agree to these Terms of Service in full. If you do not agree, you may not use Gallery.

1.5 Changes to Terms

Gallery may update these Terms at any time. Users will be notified via email and in-app notification at least 30 days before any changes take effect. Continued use of Gallery after the effective date constitutes acceptance of the updated Terms. If you disagree with changes, you may close your account within the 30-day notice period.

1.6 Dispute Resolution

Any dispute between you and Gallery will be resolved through binding arbitration as described in Section 16 (Dispute Resolution). All disputes are governed by the laws of the State of Georgia, USA.

2. Accounts

2.1 Registration

You may register using your email address, Google account, or Apple ID. During registration, you will be asked whether you wish to enable selling and commission features. This can be changed at any time from your account Settings.

2.2 Account Responsibility

You are responsible for all activity that occurs under your account. Keep your login credentials secure. Gallery is not liable for losses caused by unauthorised access to your account.

2.3 One Account Per Person

Each person may maintain one Gallery account. Creating multiple accounts to evade a ban or suspension is a Zero Tolerance violation resulting in immediate permanent ban of all associated accounts.

2.4 Account Termination — Artist

If an artist's account is terminated by Gallery, all pending escrow funds from active commissions are returned in full to the buyer immediately.

2.5 Account Termination — Buyer

If a buyer's account is terminated by Gallery, the following rules apply to any active commissions:

Commission Stage	Outcome
Request accepted, not yet paid	Commission cancelled. No money involved.
Paid — work not yet started	Full refund to buyer.
Paid — work in progress	Full refund to buyer.
Delivered and confirmed with proof	50% refund to buyer, 50% paid to artist.

2.6 Ban Evasion

Creating a new account to evade a ban or suspension is a Zero Tolerance violation. Strike history is permanently tied to your email address. If you create a new account using the same email, all prior strikes carry over automatically.

3. Content Rules

3.1 Free Expression on Gallery

Gallery supports free expression. You may share any idea, opinion, belief, or religious view on Gallery, provided it is expressed calmly, non-aggressively, and non-violently. The moment expression becomes an attack on a person or group, incites violence, or crosses into hate speech as defined below, it is no longer permitted on Gallery.

3.2 Prohibited Content

The following content is strictly prohibited on Gallery:

- Explicit sexual content or nudity of any kind
- Sexual acts or implied sexual acts

- Content involving minors in any sexual or violent context — Zero Tolerance
- Gratuitous gore with no artistic context — content that exists purely for shock value
- Content targeting, dehumanising, or calling for violence against any person or group
- Content supporting, promoting, or glorifying organisations designated as terrorist groups by the United States government
- Credible threats of real-world violence against any person
- Content that glorifies or celebrates real-world deaths, attacks, or suffering
- Harassment in any form — see Section 3.5
- Unsolicited explicit content sent to any user
- Predatory behaviour toward any user
- Doxxing — sharing another person's private real-world information without consent
- Impersonation of another artist, user, or public figure
- Blackmail or extortion

3.3 Allowed Content

The following content is permitted on Gallery:

- Suggestive or lewd content, including revealing clothing and suggestive poses, provided no nudity or sexual acts are depicted
- Artistic violence and gore within a clear narrative or fictional context — including dark fantasy, horror, and manga-style action
- Political art and social commentary, provided it does not cross into hate speech or incitement
- Fan art of existing characters and IP — subject to Section 9 (Intellectual Property)
- AI-assisted art where the artist has contributed significant original creative input, provided it is clearly labelled

3.4 Violence & Gore — Where the Line Is

Artistic violence with blood and gore in a clear fictional or narrative context is permitted. The following content is not:

- Gore with no artistic context — dismemberment, organs, or graphic injury for shock value alone
- Detailed realistic depictions of real-world violence against named or identifiable individuals
- Content celebrating real-world deaths or attacks
- Any gore or violence involving children, whether fictional or not — Zero Tolerance

Note: Real people and real events are held to a significantly stricter standard. Artistic context must be clear and non-celebratory.

3.5 Harassment — Definition

Harassment on Gallery includes but is not limited to:

- Attacking or targeting a user because of their interests, fandoms, or the art they create or commission

- Destructive criticism with no constructive value — comments designed to tear someone down rather than help them improve
- Continuing to contact a user after they have asked you to stop
- Targeted personal attacks via Direct Messages
- Sending unsolicited explicit content to any user — Zero Tolerance
- Predatory behaviour toward any user — Zero Tolerance

Note: Criticism is welcome on Gallery. The distinction is intent and constructive value. "This piece doesn't work for me, here is why and how it could improve" is criticism. "This is terrible, you should quit" is harassment.

3.6 Hate Speech — Definition

Hate speech on Gallery is any content that:

- Attacks, dehumanises, or calls for violence against a person or group based on race, ethnicity, religion, gender, sexual orientation, disability, or nationality
- Uses slurs to attack individuals or groups
- Denies or glorifies genocide or crimes against humanity
- Portrays a group as subhuman or inherently inferior

The following is not considered hate speech:

- Criticism of ideologies, religions, or beliefs, provided it targets the idea rather than the people
- Satire or artistic commentary on social issues
- Sharing factual information even if uncomfortable
- Personal opinions that are offensive but do not target a protected group

3.7 AI Art Policy

AI-assisted art is permitted on Gallery provided it is clearly labelled as AI-assisted. AI-generated art that replicates or is clearly derived from a specific artist's style without their consent is prohibited.

- Unlabelled AI art: warning first, then Minor strike for repeat offences
- AI art that steals another artist's style or work: Severe strike

Burden of proof for AI style theft lies with the reporter. Gallery reviews submitted evidence and makes a decision.

3.8 Content Involving Minors

Any content violation involving minors is automatically elevated one full severity level. Any sexual or gore content involving minors, whether fictional or real, is a Zero Tolerance violation resulting in immediate permanent ban and reporting to relevant authorities.

3.9 Fan Art & Legal Liability

Fan art is permitted on Gallery. Artists are solely responsible for the legal consequences of any fan art they create or sell, including IP claims from rights holders such as Nintendo or Disney. Gallery's legal responsibility for fan art is limited to DMCA compliance. Exception: if Gallery actively uses an artist's fan art in its own marketing or advertising materials, legal responsibility for resulting IP claims shifts to Gallery.

4. Commission Rules

4.1 The Commission Flow

Commissions on Gallery follow a structured process:

- Buyer submits a commission request with a brief and optional requested completion date
- Artist accepts or declines within 3 days. Unanswered requests are automatically cancelled after 3 days and the buyer is notified
- Artist sets a price and optional estimated completion timeline
- Buyer agrees to the price and pays. Funds are held in escrow
- Artist completes the work and marks it as delivered
- Buyer has 5 days to confirm delivery or raise a Terms of Service concern
- If the buyer does not respond within 5 days, escrow is automatically released to the artist
- If a ToS violation is raised, the commission is frozen pending moderation review

4.2 Price Changes

An artist may adjust the commission price at any point before payment is made. The buyer is notified of any price change and may cancel the commission for free if they do not agree to the new price.

4.3 Cancellation Rules

Stage	Who Cancels	Outcome
Before payment	Either party	Free cancellation, no consequences
After payment — mutual	Both agree	Full refund to buyer
After payment — artist cancels	Artist only	Full refund to buyer + strike against artist
After payment — buyer cancels	Buyer only	Full refund to buyer + counts against buyer cancellation record
After delivery	Neither	No cancellation. ToS dispute only.

A buyer who accumulates 3 or more total cancellations will have this displayed on their profile so artists can make informed decisions before accepting their requests.

4.4 Commission Violations

The following are violations of Gallery's commission rules:

- False advertising — displaying example work that does not accurately represent the artist's actual skill level. First offence: warning + Gallery issues buyer a platform credit. Second offence: Minor strike. Repeat: commission feature permanently disabled.
- Bait and switch — agreeing to one thing in the brief and delivering something materially different. Must be raised within the 5-day delivery window for Gallery to act.

- Off-platform payment requests — asking buyers to pay outside Gallery to avoid fees. Minor strike. Repeat: commission ban.
- Fake delivery — marking a commission as delivered without delivering the agreed work. Moderate strike. Repeat: Severe strike and possible ban.
- Blackmail or extortion — threatening to withhold, leak, or misuse work to extract additional payment. Zero Tolerance.
- Commission farming — repeatedly accepting commissions beyond capacity and failing to deliver within the artist's own stated timeline. Minor strike and temporary commission suspension. Repeat: permanent commission ban.

4.5 Repeat Commission Cancellations

An artist who cancels 5 or more accepted commissions within a single calendar month will have their commission feature permanently disabled. This decision is appealable.

4.6 Dispute Resolution Within Commissions

Gallery does not mediate disputes about subjective quality. Gallery will act only where a clear Terms of Service violation has occurred. All disputes must be raised within the 5-day delivery window before escrow is released. Gallery may, at its sole discretion, issue a partial refund in cases of extreme and clearly evidenced misconduct after escrow release.

5. Shop Rules

5.1 Premade Art Listings

Artists may list finished pieces for direct sale. The same false advertising, bait and switch, and content rules that apply to commissions apply equally to shop listings.

5.2 Digital Downloads

All digital file sales are final. No refunds are issued once a digital file has been downloaded by the buyer.

5.3 Physical Pieces — Shipping

Artists selling physical pieces must provide proof of shipping with a valid tracking number. Gallery's 30-day confirmation system applies to all physical sales:

- After 30 days, Gallery contacts the buyer to confirm receipt
- If confirmed received: escrow releases to artist
- If not received and artist has proof of good condition at time of shipping: shipping carrier is responsible. Gallery mediates but cannot force a refund.
- If not received and artist cannot provide proof of shipping: artist is responsible and must offer a replacement or refund

5.4 Damaged or Lost Items

Damage or loss that occurs in transit is the shipping carrier's responsibility where the artist can prove the item was shipped in good condition. Gallery will assist in mediation but is not financially liable for third-party shipping failures.

6. Payments

6.1 Transaction Fees

Gallery charges a transaction fee on all commissions and sales processed through the platform:

- Standard fee: 8% of the total transaction value
- Gallery Pro fee: 5% of the total transaction value

6.2 Escrow

All commission and shop payments are processed through Gallery's third-party payment provider and held in escrow until the transaction is confirmed complete. Gallery does not hold user funds directly. Funds are released to the artist upon buyer confirmation or automatic release after 5 days of no buyer response following delivery.

6.3 Payouts

Payouts to artists are processed immediately upon escrow release, provided no disputes, flags, or account suspensions are active on the account.

6.4 Taxes

Artists are solely responsible for reporting and paying all applicable taxes on income earned through Gallery. Gallery does not withhold taxes on behalf of artists. Gallery may introduce tax assistance tools in future platform phases but makes no current guarantee of such features.

6.5 Chargebacks

A chargeback occurs when a user reverses a payment through their bank or card provider, bypassing Gallery's platform. Gallery treats fraudulent chargebacks as a serious violation:

- Account suspended immediately pending investigation
 - If chargeback is found to be fraudulent: permanent ban
 - User owes Gallery the chargeback fee plus the original transaction amount
 - Repeat or large-scale chargeback fraud may result in legal action
 - Legitimate chargebacks (genuine fraud, stolen card): account reviewed case by case and restored where the user can prove they did not authorise the transaction
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7. Moderation & Strikes

7.1 The Three-Layer Moderation System

- Layer 1 — AI scan: every upload is scanned automatically on submission
- Layer 2 — Community reports: users can report any post or content
- Layer 3 — Account enforcement: violations accumulate as strikes

7.2 Content Pending State

When the AI flags content, it enters a Pending state visible only to the poster. The poster receives an email notification and has 14 days to challenge or self-remove the content. After 14 days, the content is automatically removed. Users may still challenge a removal after the 14-day window and Gallery may restore content if the challenge is upheld.

7.3 Strike Levels & Consequences

Level	Name	Trigger for Temp Ban	Examples
1	Minor	6 strikes within 30 days → 3-day temp ban	Spam, low-level harassment, glorifying self-harm, unlabelled AI art (repeat)
2	Moderate	4 strikes within 30 days → 14-day temp ban	Targeted harassment, hate speech, explicit NSFW, gratuitous gore, support for terrorist organisations
3	Severe	1 strike → 30-day temp ban 2 strikes ever → permanent ban	Unlabelled AI art (repeat serious), work theft, doxxing, credible threats, coordinated harassment
4	Zero Tolerance	Instant permanent ban	CSAM, predatory behaviour, unsolicited explicit content, blackmail, impersonation, gore/violence involving children

7.4 Content Involving Minors

Any violation involving minors is automatically elevated one full severity level. Any sexual or gore content involving minors, whether fictional or not, is a Zero Tolerance violation.

7.5 Appeals

All moderation decisions, including permanent bans, are appealable. Artists may challenge any content removal or account action. A human reviewer separate from the original moderation decision assesses all appeals within 5 business days. If the appeal is upheld, content is restored and no strike is recorded. All decisions are communicated with a clear reason.

8. Privacy & Data

8.1 Data We Collect

Gallery collects the following information to operate the platform:

- Account information: name, email address, date of birth
- Payment information: processed and stored securely through our payment provider
- Browse behaviour: posts you view, like, share, and commission — used to power the recommendation system
- Device information: device type, browser, operating system
- IP address
- Location data: used for advertising targeting (see Section 13)

8.2 How We Use Your Data

Gallery uses your data to operate, improve, and personalise the platform. Specifically:

- Browse behaviour and commission history are used to build your personal style profile, which powers Gallery's recommendation engine. This helps surface artists and content relevant to your taste. Processing for the recommendation system is carried out on the legal basis of legitimate interests under GDPR Article 6(1)(f), as it is essential to the core operation of the platform.
- Content patterns and flagged posts are used to train and improve Gallery's moderation AI. This AI detects Terms of Service violations — it does not generate art.
- Gallery never uses your artwork to train AI models that generate new art.
- Gallery never sells your personal data to third parties.

Your participation in the recommendation system is a core part of how Gallery works and cannot be opted out of. You may opt out of location-based advertising targeting at any time from your account Settings.

8.3 Third Party Services

Gallery uses third-party services for payments, real-time messaging, and file storage. These services may process certain user data as necessary to provide their functions. Gallery does not sell data to these services. All third-party providers are contractually bound to handle your data in accordance with applicable privacy laws.

8.4 Cookies

Gallery uses four types of cookies:

- Essential cookies: required for the platform to function. Cannot be opted out of.
- Analytics cookies: help Gallery understand how users interact with the platform.
- Advertising cookies: support targeted ad delivery.
- Preference cookies: remember your settings and personalisation choices.

EU users will be presented with a cookie consent banner for non-essential cookies. All users may manage cookie preferences from their account Settings.

8.5 Data Retention

- Financial and transaction records: retained for 7 years for legal and tax compliance

- Strike history: retained indefinitely, tied to your email address, for platform safety and abuse prevention purposes
- Deleted content: retained for 12 months after deletion for legal purposes, then permanently purged
- Inactive accounts: retained indefinitely unless you request deletion

8.6 Your Rights

You may at any time:

- Request a download of all personal data Gallery holds about you
- Request deletion of your account and personal data. Financial records, strike history, and any data required for legal compliance will be retained as outlined above.

EU users have additional rights under GDPR including the right to access, correct, restrict, and object to processing of their data. Users in California, Israel, and Japan have equivalent rights under applicable local law.

8.7 Data Security & Access

Gallery uses industry-standard security measures to protect your data. Internal access to user data is role-based — only employees who require specific data to perform their job function may access it. A moderator reviewing content violations cannot access payment records.

8.8 Cross-Border Data Transfers

Gallery is based in the United States. Your data may be transferred to and processed in countries outside your own. International transfers of EU/EEA personal data are made pursuant to Standard Contractual Clauses (SCCs) approved by the European Commission, or another valid transfer mechanism under Chapter V of the GDPR. Gallery applies equivalent safeguards to all users worldwide, regardless of location.

8.9 Data Breaches

In the event of a data breach that affects your personal information, Gallery will notify affected users as soon as possible and notify relevant authorities within 72 hours of discovering the breach, in accordance with GDPR requirements.

8.10 Privacy Policy Changes

Gallery will provide at least 30 days' notice before any changes to this Privacy section take effect, via email and in-app notification. Users who do not agree with the changes may close their account within the notice period.

9. Intellectual Property

9.1 Artist Ownership

Artists retain full copyright ownership of all work they post on Gallery. By posting on Gallery, you grant Gallery a non-exclusive, royalty-free licence to display your work on the platform and use it in Gallery's marketing and promotional materials. This is a licence to display — not to own, sell, or transfer your work.

9.2 Promotional Use & Compensation

Where Gallery wishes to actively feature an artist's work in its own advertising or promotional campaigns, Gallery will seek the artist's explicit permission before doing so and will make a reasonable effort to compensate the artist. Where Gallery uses fan art in marketing materials and this results in an IP claim from a rights holder, legal responsibility shifts to Gallery, not the artist.

9.3 Commissioned Work

By default, artists retain copyright on all commissioned work. The buyer receives the commissioned file for personal use only. Copyright transfers to the buyer only if explicitly agreed upon in writing within the commission brief. Artists may display their commissioned work in their Gallery portfolio regardless of who commissioned it.

9.4 Commercial Licences

Buyers who wish to use commissioned or purchased work for commercial purposes — including merchandise, prints, or derivative works — must obtain explicit permission from the artist. Gallery provides an in-platform commercial licence request feature allowing buyers to formally request and agree licensing terms directly with the artist.

9.5 Reselling

Reselling art purchased on Gallery through Gallery's platform is prohibited. What buyers do with their purchases outside of Gallery is beyond Gallery's control and legal responsibility.

9.6 DMCA & Copyright Takedowns

Gallery complies with the Digital Millennium Copyright Act (DMCA). If you believe your work has been posted on Gallery without your permission, you may submit a takedown request through Gallery's dedicated DMCA form. Gallery will respond within 14 days. Artists whose work is removed have the right to file a counter-notice if they believe the takedown was wrongful. Gallery will review counter-notices within 14 days. Users who receive 3 confirmed copyright violation findings will have their account permanently terminated.

9.7 Fan Art Liability

Fan art of copyrighted characters and properties is permitted on Gallery. Artists are solely responsible for any legal consequences arising from their fan art, including IP claims from rights holders. Gallery's liability is limited to DMCA compliance response.

10. Gallery Pro

10.1 What Gallery Pro Includes

Gallery Pro is a paid subscription for artists who want to build a career through the platform. Pro includes a reduced transaction fee of 5% (versus the standard 8%), early access to new features, and an expanding set of career-focused tools. Gallery Pro is for individual accounts only. Team and family plans may be introduced in future phases.

10.2 Pricing & Billing

The Gallery Pro subscription price is listed on the Gallery website. Gallery will provide at least 30 days' notice before any price increase. Existing subscribers will receive one final month at their current price before the new price takes effect.

10.3 Free Trials

Gallery offers free trial periods at its discretion, including standard trials for new users, extended trials for early adopters, and promotional trials for partners. Trial length varies by program.

10.4 Cancellation

You may cancel Gallery Pro at any time. Pro benefits continue until the end of the current billing period. No refunds are issued for partial months.

10.5 Failed Payments

If a subscription payment fails, a 1-month grace period applies. During the grace period, the transaction fee increases from 5% to 7%. If payment is not resolved within 1 month, Pro benefits are suspended and the standard 8% fee applies.

10.6 Pro & Account Suspension

If a Pro subscriber's account is temporarily suspended, the Pro subscription is paused and cancelled at the end of that billing month. If a Pro subscriber receives a permanent ban, their subscription is cancelled immediately with no refund.

10.7 Feature Changes

Gallery will provide at least 30 days' notice before removing or significantly changing any Gallery Pro feature.

11. Liability & Disclaimers

11.1 Platform Provided "As Is"

Gallery is provided "as is" and "as available" without warranties of any kind, express or implied. Gallery does not guarantee that the platform will meet every user's specific needs or expectations.

11.2 Quality Disclaimer

Gallery facilitates transactions between artists and buyers but does not guarantee the quality of work delivered. Gallery is not responsible for subjective quality judgements. Gallery will act where there is clear evidence that delivered work does not match what was promised under these Terms.

11.3 Maximum Liability

To the fullest extent permitted by law, Gallery's total liability to any user for any claim arising from use of the platform is limited to the total amount that user has paid to Gallery in the 12 months preceding the claim.

11.4 Gallery's Fault vs. Platform Risk

Where a loss is directly caused by Gallery's own negligence or wilful misconduct, Gallery will compensate the affected user up to the cap set out in Section 11.3.

Gallery is not liable for any indirect, incidental, special, or consequential damages — including lost income, lost data, or business interruption — where such damages are not directly caused by Gallery's own fault, even if Gallery has been advised of the possibility of such damages.

11.5 Indemnification

You agree to indemnify and hold Gallery harmless from any claims, damages, or legal costs arising from your use of the platform, your content, or your violation of these Terms.

11.6 Force Majeure

Gallery is not liable for failure to perform its obligations where such failure results from events beyond its reasonable control, including natural disasters, government actions, wars, pandemics, or third-party infrastructure failures.

11.7 Third-Party Services

Gallery uses third-party services for core platform functions including payments, messaging, and storage. Gallery's liability for failures of third-party services will be defined in accordance with Gallery's contractual agreements with those providers, details of which will be updated in these Terms as agreements are finalised.

12. Work Protection

12.1 Screenshot Blocking & Watermarking

Gallery implements screenshot blocking and automatic watermarking on all artwork posted to the platform. Every piece of art posted on Gallery is watermarked with the format: Gallery | @username. Gallery commits to implementing all technically feasible protection measures available. No system is completely unbreakable and Gallery cannot guarantee absolute protection against all circumvention methods.

12.2 Circumvention Violations

The following are Moderate strike violations:

- Bypassing Gallery's screenshot protection by any means
- Using third-party software or browser extensions designed to circumvent Gallery's content protection
- Removing, altering, or obscuring Gallery watermarks from any artwork

12.3 Sharing Downloaded Art

Buyers who receive commissioned or purchased art files may not share those files publicly without the artist's explicit permission. Violation is the buyer's legal responsibility.

12.4 DMCA Process

Artists who discover their work has been posted elsewhere without permission may submit a DMCA takedown request to Gallery through the dedicated DMCA form. Gallery will respond within 14 days and assist with the takedown process. Artists may submit a counter-notice if they believe a takedown was wrongful. Gallery reviews counter-notices within 14 days. Three confirmed copyright violations result in permanent account termination.

13. Advertising

13.1 How Advertising Works on Gallery

Gallery displays targeted advertisements to all users. Ads are targeted based on art-related data only — including art styles you browse, mediums you engage with, and location. Gallery does not use sensitive personal categories such as religion, politics, health, or ethnicity for ad targeting.

13.2 Ad Targeting & Opt Out

You may opt out of location-based advertising targeting at any time from your account Settings. Opting out of location targeting does not remove all ads — you will still see ads targeted by art preferences.

13.3 Minors & Advertising

Users under the age of 13 will not be shown targeted advertisements. Users under 16 in the European Union will be shown generic, non-targeted advertisements only.

13.4 Advertiser Approval

Gallery reviews and approves all advertisers before their ads go live. Gallery retains the right to reject any advertiser at its sole discretion. All advertisements must comply with the same content rules as user-posted content. Ads that violate Gallery's content rules are removed and the advertiser banned from the platform.

13.5 Ad Labelling

All paid advertisements are clearly labelled as "Sponsored" so users can always distinguish paid content from organic content.

13.6 Advertiser Data

Advertisers receive anonymised performance metrics only, including impressions, clicks, and engagement rates. No personal user data is shared with or sold to advertisers.

13.7 Influencer & Sponsored Content

Artists who are paid or compensated by a brand to post about their products on Gallery must clearly disclose this as sponsored content, in accordance with the U.S. Federal Trade Commission (FTC) guidelines on endorsements and testimonials. Failure to disclose sponsored content is a Minor strike violation.

13.8 No Retargeting Outside Gallery

Gallery's advertising system operates entirely within the platform. Advertisers may not use Gallery data to retarget users on external platforms or websites.

14. Ratings & Trust Scores

14.1 How Ratings Work

Buyers may rate artists after a commission is completed. Ratings are public and displayed on the artist's profile alongside the buyer's name. Buyers have 24 hours after commission completion to submit or edit their rating. After 24 hours the rating is locked permanently.

14.2 Trust Score

An artist's Trust Score is a composite of their average buyer rating, their commission cancellation rate, and any selling-related strikes on their account. The Trust Score is displayed publicly on an artist's profile once they have completed 10 commissions. Before reaching 10 completions, the profile shows "New Artist." Users can tap the overall Trust Score to view a full breakdown.

14.3 Buyer Cancellation Record

Artists can view a buyer's total commission cancellation count before accepting a request. There is no formal buyer Trust Score.

14.4 Disputing a Rating

Artists may appeal a rating they believe is unfair or retaliatory by submitting a dispute with supporting evidence. Gallery reviews the evidence and may: uphold the rating as valid; remove the rating if it is found to be in bad faith; or escalate the matter for senior review in complex cases. Gallery will not adjust a rating downward as a result of an appeal. Leaving a retaliatory rating is a Minor strike violation.

15. Trend Data

15.1 What Trend Data Is

Gallery produces quarterly anonymised trend reports covering popular art styles, mediums, and rising artist categories. These reports are made available for purchase to businesses and brands. Any business may purchase trend reports — no exclusivity arrangements are offered.

15.2 What Is and Is Not Included

Trend reports contain aggregated, anonymised insights only. The following information is never included in trend reports:

- Personal names, usernames, or email addresses
- Individual purchase amounts or transaction details
- Private commission content or briefs
- Any data that could identify a specific user

Artists are anonymised by default in trend reports. Artists who wish to be named in trend reports as a rising creator may opt in through Gallery Pro settings.

15.3 How Your Data Contributes

Your aggregated, anonymised browse and engagement behaviour contributes to Gallery's trend data. This is disclosed in Section 8 (Privacy & Data). Gallery uses industry-standard anonymisation practices before any data is used in trend reports.

15.4 Accuracy Disclaimer

Trend reports reflect Gallery platform activity and are not guaranteed to represent broader art market trends. Businesses purchase trend reports at their own risk. Gallery makes no warranty as to the accuracy or completeness of trend data.

16. Dispute Resolution

16.1 Arbitration

Any legal dispute between you and Gallery will be resolved through binding arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules, except as noted below. Gallery covers all arbitration filing fees. Each party is responsible for their own legal representation costs unless the arbitrator awards otherwise.

16.2 Small Claims

Either party may bring a dispute valued under \$10,000 in small claims court as an alternative to arbitration, at the claimant's option.

16.3 Class Action Waiver

You and Gallery both waive the right to participate in class action lawsuits or class-wide arbitration. All disputes must be brought individually.

16.4 Emergency Relief

Either party may seek emergency injunctive or other equitable relief from a court of competent jurisdiction without waiving their right to arbitration for the underlying dispute.

16.5 Procedures

- Governing law: State of Georgia, USA
- Arbitration conducted remotely by default; in person in Atlanta, Georgia if required
- Language: English
- Time limit: all claims must be filed within 1 year of the incident
- Opt out: you may opt out of arbitration within 30 days of account creation by notifying Gallery in writing

17. Platform Availability

17.1 Restoration Commitment

Gallery commits to restoring service within 11 days of any major platform outage. For every day beyond 11 that the platform remains unavailable, Gallery Pro subscribers will receive a corresponding extension of their subscription at no charge.

17.2 Planned Maintenance

Gallery will provide at least 48 hours' advance notice of planned maintenance downtime via email and in-app notification.

17.3 Active Commissions During Outages

All active commission deadlines, delivery windows, and escrow timers are automatically paused for the duration of any platform outage and extended by the equivalent number of days.

17.4 Escrow During Outages

Escrow funds held on Gallery's behalf remain secure during outages. No escrow releases, transfers, or disbursements are processed during an active platform outage.

17.5 Data Integrity

Gallery maintains regular data backups and commits to the restoration of user data following any platform incident. Gallery will not knowingly allow user data loss to persist following an outage.

17.6 Status Page

Gallery maintains a public platform status page where users can check current platform health, active incidents, and maintenance windows at any time.

18. General

18.1 Entire Agreement

These Terms of Service constitute the entire agreement between you and Gallery regarding the Platform and supersede all prior communications, representations, agreements, or understandings, whether written or oral.

18.2 Waiver

Failure by Gallery to enforce any provision of these Terms at any time shall not constitute a waiver of Gallery's right to enforce that provision or any other provision in the future. No waiver of any breach shall be deemed a waiver of any subsequent breach.

18.3 Severability

If any provision of these Terms is found to be invalid, illegal, or unenforceable under applicable law, that provision will be modified to the minimum extent necessary to make it enforceable, or severed if modification is not possible. The remaining provisions of these Terms will continue in full force and effect.

18.4 Legal Contact

For legal notices, DMCA takedown requests, formal correspondence, and data privacy enquiries, contact:

- Legal: legal@shomronindustries.com
- General enquiries: hello@gallery.app

These Terms of Service were last updated in 2026. For questions, contact hello@gallery.app.

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